

INTA Practice Guides Report

Trademark Enforcement Guide

Belgium

SINGLE JURISDICTION REPORT

CONTRIBUTOR(S)

Olivier Vrins, ALTIUS, Brussel, Belgium

Peter Blomme,

I. Pre-filing Requirements/Demand Letters — A. Pre-filing Requirements/Demand Letters

- Although it is not mandatory to send a demand letter before instituting proceedings in this jurisdiction, it is common to send such a letter.
- Although it is not mandatory to attempt to settle with the other party before instituting proceedings in this jurisdiction, it is commonly done.
- It is neither mandatory nor common to engage in mediation or other alternative dispute resolution proceeding with the other party before instituting infringement proceedings in this jurisdiction.
- Before initiating an infringement proceeding, a party is required to take the following actions: none. Before initiating an infringement proceeding, a party may take the following actions: Either:- Send a formal notice to the defendant, requesting the infringement to be ceased, damages to be paid, and information to be provided.- Send a confidential letter by the attorney of the claimant to the attorney of the defendant, proposing amicable negotiations.Or:- Initiate ex parte proceedings with the court, requesting a search and seizure order, to obtain further evidence regarding the existence and/or extent of the infringements, as well as the identity of the parties involved. In this case, no formal notice is sent, so as to not alert the target of the possible action against it (preventing the evidence from being destroyed).
- The name for such a letter is: In Dutch: "Ingebrekestelling" In French: "Mise en demeure" In English: "Formal notice"
- Such a letter should be sent at the following time: If choosing to send a formal notice before initiating infringement proceedings, a reasonable term should be left to the defendant to reply to the notice, before actually initiating the proceedings. Depending on the circumstances, this could be two days to two weeks.No such formal notice will generally be sent when the claimant considers requesting an ex parte search and seizure order.
- Such a letter can be sent by: the owner of the mark; a licensee (Without prejudice to the terms of the licensing contract, the licensee may initiate infringement proceedings only with consent of the trademark holder. However, the holder of an exclusive license may bring such proceedings if the trademark holder, after formal notice, does not himself initiate infringement proceedings within an appropriate period.Under these circumstances, the licensee may be able to send a formal notice and initiate infringement proceedings afterwards. This is the case for both Benelux trademarks (Article 2.32.4 of the Benelux Convention on Intellectual Property) and European Union trademarks (Article 25(3) of the European Union Trade Mark Regulation 2017/1001).); an attorney for the owner of the mark; an attorney for the licensee of the mark.
- Specific rules/customary practices applicable to such letters include:the form or content of the letter (see below);allowing sufficient time for response.

- With regard to the form or content of the letter, the following details are commonly included: identification of claimant; details of alleged rights infringed; identification of objecting party's first use dates; identification of any trademark registrations owned by the objecting party; details of the alleged infringement; potential claims (other than infringement), e.g., damage claims or costs; time for response; consequences of not responding within the time set out in the letter; threat of legal action; request for undertaking, including obligation to pay contractual penalty for future infringement; request for summary of sales, revenues and/or profits derived from the use of the allegedly infringing mark; request for identification of customers and/or suppliers of products bearing the allegedly infringing mark; identification of the defendant; description of the obligation that created the claim; if the claim concerns a sum of money, the justification of all amounts that are claimed from the defendant, including damages and interests; if the letter is sent by a lawyer, the fact that the formal notice interrupts the limitation period; the signature of the lawyer or the bailiff appointed by the claimant, or of the claimant himself.
- The consequences of not following the particular rules/customary practices listed above when drafting the letter are: in principle, none. However, Article 2244 of the Belgian Civil Code provides that formal letters that comply with certain requirements interrupt the statutory limitation period. As a consequence, not meeting those requirements implies the claimant cannot benefit from this interruption. Article 2244 of the Belgian Civil Code grants the claimant a new one-year period to institute legal proceedings (except if the original limitation period was shorter, then an equally short additional period will be granted). However, the claimant's claims cannot be time-barred before the original limitation period (that can be longer than one year) has lapsed. This interruption granted on the basis of Article 2244 of the Belgian Civil Code can only be enjoyed once. The formal notice should be sent by registered mail with acknowledgment of receipt by the claimant's lawyer or bailiff, to the defendant with domicile, residence, or registered offices in Belgium (the address should be verified on the basis of information that may not be older than one month). The formal notice should explicitly contain the following information: 1. identification of the claimant; 2. identification of the defendant; 3. description of the obligation that forms the basis of the claim; 4. if the claim concerns a sum of money, the justification of all amounts that are claimed from the defendant, including damages and interests; 5. the deadline by which the defendant has to fulfill its obligations before additional recovery measures can be taken; 6. the possibility of initiating legal proceedings in order to obtain recovery measures if the defendant fails to react within the set period; 7. the fact that the formal notice interrupts the limitation period; 8. the signature of the lawyer or the bailiff appointed by the claimant.
- The length of time within which to allow the recipient to respond to the letter that is considered reasonable is: dependent on the circumstances (severity of the infringement, urgency of the remedy); the deadline imposed can vary from two days to two weeks.
- The following factors are taken into consideration when determining the length of time that is considered reasonable: the time required to assess the notice letter, take position, and execute the acts requested; the expected time of receipt of the formal notice; any legal limitation periods that should be respected by the claimant to validly initiate infringement proceedings; and any other circumstances that might have an influence on the ability for the defendant to react.
- The benefits of sending a demand letter before initiating infringement proceedings rather than immediately initiating proceedings without sending a demand letter include: may help ascertain whether alleged infringer has meritorious defenses; results

may be achieved more quickly and at lower cost; may provide a basis for a claim of willful infringement; may be viewed favorably in litigation by decision maker; may lead to negotiations and avoid the need to commence proceedings.

- The potential consequences of sending such a letter include: provides grounds for an action for declaration of invalidity or non-infringement; the possibility of the recipient's initiating infringement proceedings based on alleged prior rights; the possibility of the recipient's initiating proceedings for unjustifiable threat of infringement; destruction of evidence; adverse publicity and/or adverse social media response; loss of the element of surprise, giving infringer time and opportunity to prepare a defense.
- Factors to consider if a demand letter is sent and proceedings for infringement are not initiated include: the claim may be barred by time limits or statute of limitations; loss of credibility in enforcement actions.

II. Claim for Infringement of a Registered Trademark — A. Claim for Infringement of a Registered Trademark

- There is only one court system or administrative body that has jurisdiction over claims for infringement of a registered trademark, which is: The Belgian court system with jurisdiction over infringement cases consists of five Enterprise Courts, five Courts of Appeal of Antwerp, Brussels, Ghent, Liège, and Mons, and, on points of law only, the Belgian Supreme Court (Hof van Cassatie; Cour de Cassation). EU trademark infringement cases fall under the exclusive jurisdiction of the Brussels Enterprise Court (on appeal the Brussels Court of Appeal, and ultimately the Supreme Court). This exclusive jurisdiction also applies when both Benelux and EU trademarks are involved in the proceedings. The President of the territorially competent Enterprise Court deals with expedited cease and desist measures, whereas the full-house Enterprise Court deals with "ordinary" proceedings on the merits. Furthermore, the Court of Justice of the European Union and the Benelux Court of Justice can render preliminary rulings interpreting European or Benelux (trademark) provisions respectively.
- The following factors determine which court or administrative body can hear a case: place of alleged infringement; place where alleged damage occurred; residence of defendant; nature of the right; the Commercial Court of Brussels is exclusively competent for any claims involving Union trademarks. nature of the remedies sought; cease and desist measures are normally requested in expedited proceedings on the merits before the President of the competent Commercial Court.
- The following parties have standing/authority to institute a trademark infringement proceeding: the registered proprietor of a mark; an exclusive licensee (the owner/registered proprietor must join the proceeding) (The holder of an exclusive license may bring such proceedings if the trademark holder, after formal notice, does not himself initiate infringement proceedings within an appropriate period. Subject to the same conditions, the licensee may also intervene in infringement proceedings brought by the trademark holder, to obtain compensation for the damage he suffered. This is the case for both Benelux trademarks (Article 2.32.4 of the Benelux Convention on Intellectual Property) and European Union trademarks (Article 25(3) of the European Union Trade Mark Regulation 2017/1001).); a non-exclusive licensee (the owner/registered proprietor must join the proceeding) (Without prejudice to the terms of the licensing contract, a non-exclusive licensee may initiate or intervene in infringement proceedings only with the trademark proprietor's consent. This is the case for both Benelux trademarks (Article 2.32.4 of the Benelux Convention on Intellectual Property) and European Union trademarks (Article 25(3) of the European Union Trade Mark Regulation 2017/1001).).

- If there is more than one registered proprietor/owner, they need not all join in instituting the proceedings. Belgian trademark law does not specifically deal with this issue. According to the case law, the general civil law rules on co-ownership should apply (Art. 577-2 and et seq. of the Belgian Civil Code). According to the general civil law, actions to conserve the co-owned property may be undertaken by any of the co-proprietors alone. Actions of administration and disposal, on the other hand, require the support of all co-owners (or in case of disagreement, authorization by the court). A qualification of the considered action is thus required.— An ordinary infringement action is regarded by legal scholars as an act of administration (as a counterclaim for invalidity or revocation could be introduced, leading to the loss of the trademark for all co-owners), requiring the support of all co-owners. However, a minority of legal scholars considers an infringement action as an act of conservation, which each co-owner may exercise individually.— A cease-and-desist action is regarded as an act of administration, requiring the support of all co-owners. However, some (contested) case law regards this action as an act of conservation, which each co-owner may institute individually (e.g., Pres. Comm. Court of Liège, Sept. 3, 2013, ICIP 2014, 147).— An action for summary proceedings is regarded as an act of conservation, which each co-owner may exercise individually (e.g., Pres. Comm. Court of Brussels, November 29, 2016, IRDI 2017, 83).— A request for a descriptive seizure is regarded by legal scholars as an act of conservation, which each co-owner may exercise individually. However, some case law requires authorization by the other co-owners (or the court) (Pres. Comm. Court of Brussels, March 3, 2015, IRDI 2015, 44).

- Trademark infringement proceedings are decided by a judge with no jury.
- The time limit for initiating trademark infringement proceedings is: On the basis of article 2262bis, paragraph 1 of the Belgian Civil Code, the general time limitation for personal claims is ten years. Trademark infringement claims fall under this category. Regarding a claim for damages based on a trademark infringement, the statute of limitation of Article 2262bis, paragraph 2 and 3 of the Belgian Civil Code applies, as a trademark infringement can be qualified as an act causing non-contractual liability. This implies that the proceedings should be initiated within five years from the moment the trademark holder (or licensee) is aware of the infringement and of the identity of the infringer. When the trademark holder (or licensee) has not become aware of these elements, the proceedings will in any case have to be initiated within twenty years from the day of the actual infringement. Some courts have applied article 2262bis, paragraph 2 and 3 of the Belgian Civil Code to trademark infringement claims, instead of article 2262bis, paragraph 1 of the Belgian Civil Code mentioned above. According to prominent legal scholars, the general one-year time limitation for general cease-and-desist actions (Art. XVII.5 of the Code of Economic Law) does not apply to the specific IP cease-and-desist action, which is governed by Art. XVII.14 and following. However, failure to act expeditiously could in exceptional cases be deemed to constitute an abuse of right.
- Once infringement proceedings are initiated, the stages of the proceedings include:
 - filing of claim (including presentation of facts and legal arguments);
 - filing of reply/defense to claim (Written submissions will be exchanged, in which the parties present the facts and the legal claims/defenses. Usually, two or three rounds are agreed upon, whereby the defendant always has the possibility to file its submissions as final reply.);
 - filing of counterclaim;
 - filing of evidence;
 - mediation (Mediation can take place both before or during legal proceedings. However, in general, mediation is quite rare.);
 - expert discovery (During inter partes infringement proceedings, as a preliminary measure before rendering

judgment, the court can appoint an expert that can gather evidence and documentation regarding the existence and scope of the infringement. However, usually, such expert is appointed on the basis of an ex parte search and seizure request.); preliminary motions (to dismiss, for preliminary injunction or temporary restraining order); filing of briefs/written arguments; oral hearing; oral testimony/examination of witnesses (Witnesses are very rarely heard at the hearing. Usually, written witness declarations are submitted as exhibits.); trial (At the hearing, the claimant first sets out his arguments, followed by the defendant, who sets out his defenses and possible counterclaims. Afterwards, the parties will have the opportunity to reply, and the court might ask questions.); judgment/decision.

- The average amount of time from instituting of infringement proceedings through trial/final hearing is: between one and two years. However, under Belgian law, there are so-called fast track proceedings on the merits, which are dealt with as if they were summary proceedings, but leading to a definitive judgment (Art. XVII.14 and following of the Code of Economic Law). These proceedings are quite fast opposed to normal proceedings of the merits. Often times, the judgment is rendered within three to nine months.
- The average amount of time from the end of the trial/final hearing to the issuance of judgment is: up to two months.

III. Claim for Infringement of Unregistered Trademark/Unfair Competition/Passing Off — A. Claim for Infringement of Unregistered Trademark/Unfair Competition/Passing Off

- Unregistered trademarks are protected under the following laws: A minority of case law and legal scholarship contests that unregistered trademarks can be protected under the unfair competition statute, on the basis of Article 2.19 of the Benelux Convention on Intellectual Property. This article provides that no one may claim protection for a sign deemed to be a trademark unless the claimant can provide evidence of registration of that trademark. This (interpretation and application of) Article 2.19 of the Benelux Convention on Intellectual Property is regarded as contrary to European and International law by several legal scholars.
- The following parties have standing/authority to institute proceedings for infringement of an unregistered trademark: the owner of the unregistered right.
- If there is more than one owner of an unregistered trademark, they need not all join in instituting the proceedings.
- It is possible to institute a single proceeding for both registered trademark infringement (under the trademark law) and unregistered trademark infringement (under the law(s) listed above). Claims regarding trademark infringement and regarding unfair market practices can be dealt with in one single proceeding.

IV. Civil Enforcement-- Emergency Measures — A. Ex Parte Injunctions

- Ex parte injunctions are available to claimants seeking emergency relief. Different types of ex parte proceedings can be initiated:— An ex parte request to the President of the Court for urgent preliminary measures, in summary proceedings.— An ex parte request to the President of the Court for the appointment of an expert. The expert will be able to conduct a surprise raid on the alleged infringer's premises, searching his premises for evidence regarding the existence and scope of the infringement, as well as information regarding the parties involved. The expert will report its findings to the Court and the claimant, allowing the latter to initiate proceedings on the merits.— In the context of the request for a search order, it is also

possible to ask that the President of the Court grant the expert and the bailiff the power to seize any infringing goods while conducting the search. The three ex parte requests are subject to different conditions.

- In order to apply for an ex parte injunction, it is not necessary to institute infringement proceedings at the same time. Unless the order provides for another (shorter or longer) time limit, proceedings on the merits will have to be initiated within 20 working days or 31 calendar days (whichever is longest) after service of the order granting the preliminary measures or after the filing of the expert's report. Otherwise, the preliminary measures cease to have their effect, or the expert report may no longer be used (Art. 1369bis/9 and 1369ter of the Judicial Code). It is possible to institute infringement proceedings at the same time as the ex parte requests.
- The types of ex parte injunction available include: prohibitory (to prohibit the defendant from performing certain acts); mandatory (to require the defendant to perform certain acts).
- There is no specified statutory or court-determined deadline for seeking an ex parte injunction. However, in order to obtain preliminary measures in the framework of preliminary proceedings, the claimant needs to be able to show that there is urgency or absolute necessity. Both of these imply that the claimant may not dawdle when seeking the ex parte order.
- A delay in applying for an ex parte injunction after becoming aware of the alleged infringing activities can prevent the applicant from obtaining the desired relief under the following circumstances: A delay in applying for preliminary measures in the context of preliminary proceedings may lead the judge to rule that there is no urgency or absolute necessity (any more). In such circumstances, the request will be dismissed.
- The purpose of an ex parte injunction is: to restrain further infringing activities until trial or a further hearing; to prevent the consequences of an infringement or violation; to obtain or preserve evidence (The expert can be ordered to go anywhere in Belgium to describe all objects, elements, documents or methods that allow him to prove the alleged infringement as well as its origin, destination and extent. He can be allowed to take any measures useful for his mission and, in particular, take copies, photocopies, photographs and audiovisual recordings, as well as obtain samples of the suspected infringing goods and the materials and tools used in their production and/or distribution and the documents relating to the infringement. If a seizure is requested in the context of the ex parte request, the President of the Court can also prohibit the disposal, moving or alterations of the infringing goods, the materials, tools and documents used in their production and/or distribution. He may appoint a custodian and order the sealing of the objects if they appear to have their direct origin in the alleged infringement.); to prevent irreparable injury.
- The strategic benefits of obtaining an ex parte injunction include: putting the defendant at a strategic disadvantage at the beginning of the case; obtaining or preserving evidence; reducing potential damage caused by infringement. Ex parte proceedings will not lead to a judgment finding infringement, or lack thereof. As such, the ex parte proceedings will not put an end to the dispute between the parties. The ex parte proceedings are either used to obtain measures to limit further damages, or to obtain more evidence (regarding the infringement or the damages) to be used in subsequent proceedings on the merits. However, it is possible for the parties to settle their dispute at the stage of the ex parte proceedings. Preliminary measures granted in the context of ex parte summary proceedings cease to have their effect if no writ of summons on the merits is introduced within 20 working days or 31 calendar days (whichever is longest) after the service of the summary order to the defendant (unless

the order provided for another longer or shorter time limit) (Art. 1369ter of the Judicial Code). The expert report may no longer be used if no writ of summons on the merits is introduced within 20 working days or 31 calendar days (whichever is longest) after the receipt of the expert report (unless the order provided for another longer or shorter time limit) (Art. 1369bis/9 of the Judicial Code).

- The risks of seeking an ex parte injunction (if it is not granted) are: increased costs of the proceedings; early adverse determination (although the court handling the case on the merits is not bound by the decision in summary proceedings).

- An ex parte injunction remains in place: until a decision is made in the main proceedings. When granting an ex parte injunction, the President of the Court is able to determine the terms and conditions of the order, including the scope and the duration. However, if no writ of summons on the merits is introduced within 20 working days or 31 calendar days (whichever is longest) after the service of the summary order to the defendant (unless the order provided for another longer or shorter time limit), the preliminary measures cease to have their effect (Art. 1369ter of the Judicial Code; Art. 50(6) TRIPS Agreement).

- The defendant is notified of the grant of an ex parte injunction: by the plaintiff. The order granting an ex parte injunction will be served on the defendant, at the request of the plaintiff.

- The plaintiff must notify the defendant within the following time frame: Unless explicitly provided for by the court order that the injunction should be enforced within a certain time frame, there is no time frame to be respected for the notification.

- The procedure for applying for an ex parte injunction includes the following: motion; supporting memorandum/points and authorities of law; supporting affidavits or declarations; supporting documentary evidence; supporting witness testimony (Witnesses are rarely heard. Most often, written witness statements are provided by the plaintiff as exhibits.); hearing (The case will not always be heard.); order; posting bond, cross-undertaking or other security (The President of the Court can require the plaintiff to provide a bond or a security deposit.).

- The amount of the bond or cross-undertaking is determined based on: the potential damage/losses to the defendant caused by an improvidently entered injunction (Art. 1369bis/3 and 1369ter(2) and (3) of the Judicial Code).

- The factors considered in the granting of an ex parte injunction are: inadequacy of damages as a remedy (This factor will be considered in the context of a request for preliminary measures in summary proceedings.); balance of convenience or hardships; i.e., consideration of the hardship to each side arising from the grant and from the denial of the injunction; likelihood of success on the merits; urgency (This factor will be considered in the context of a request for preliminary measures in summary proceedings.); timeliness with which plaintiff sought the injunction (This factor will be considered in the context of the condition of urgency, required to initiate summary proceedings.). Different conditions need to be fulfilled for the different ex parte proceedings.— Preliminary measures in summary proceedings: The President of the Court will examine whether there is an absolute necessity, being exceptional circumstances; whether there is urgency; and whether the balance of interest allows the preliminary measures. The decision of the President in summary proceedings is not final, in the sense that the judge on the merits is not bound by it.— Search and description order: The President of the Court examines (1) whether the invoked trademark is prima facie valid and (2) whether there are indications that the trademark has been infringed or that an infringement is imminent.— Seizure: The President of the Court examines (1) whether the trademark invoked is prima facie valid; (2) whether the infringement of the trademark cannot be

reasonably disputed; and (3) whether, a balance of interests, including the public interest, justifies the seizure.

- The following forms of evidence are admissible in support of an ex parte injunction application: written witness statements; documents; affidavit samples of infringing product(s).
- If the court later finds that the ex parte injunction was granted in error, the applicant will be required to: compensate the defendant for damages suffered from the injunction; forfeit its bond, which may be paid to the defendant.
- The cost of obtaining an ex parte injunction, including attorney fees and court costs (but not including the cost of a bond), is approximately: between USD \$10,000 and \$50,000. On average, between EUR 12,000 and 20,000. The fees for the execution of a search and seizure order are not included (expert and attorney fees).
- The costs of an ex parte injunction are recoverable as follows: The recovery of attorney fees is organized by law. In particular, fixed recoverable amounts are set, which apply for each instance (first instance and appeal). The Court of Justice has analyzed this fixed amount system and ruled that such a system is in principle allowed, but that the amounts should cover a significant and appropriate part of the reasonable costs incurred by the successful party (judgment of 28 July 2016, C-57/15, United Video Properties). In Belgium, the case law takes the case law of the European Court of Justice into account, but absent any legislative initiative, it continues to apply the fixed amounts (see for example Antwerp 8 May 2017, IRDI 2017, 16). For non-monetary claims, the base recoverable amount is EUR 1,440. This amount can be reduced to a minimum of EUR 90 and a maximum of EUR 12,000 based on the circumstances of the case, such as the complexity of the case.
- On average, an ex parte injunction is issued within the following time period (counting from the filing of the application to the issuance of the injunction): between two and 10 days. In accordance with Art. 1418 of the Judicial Code, a judge needs to render a judgement within eight days for a seizure request. It is not specifically provided whether this applies to the specific IP search and seizure orders as provided for in Art. 1369/1 and following of the Judicial Code, but in practice the order is granted sooner.
- In an ex parte proceeding, a party may request an order to enter the premises of another party and to search for property/documents/items that may become evidence (i.e., a "search order" or "search and seizure order").
- The following party or parties will be present at the inspection: the marshall, sheriff or other law enforcement officer (a bailiff making a report of the events, and possibly a law enforcement officer and a locksmith); the party against whom the order is granted; the party's/parties' legal representative(s) (The applicant (and/or his counsel) may only be present if specifically authorized by the President of the Court. The counsel for the defendant may in any case be present.); the appointed expert that has been ordered to make a description.
- In an ex parte proceeding, a party may request an order to freeze the assets of another party to prevent dissipation of the assets before conclusion of the proceedings (i.e., a "freezing order" or "freezing injunction").
- The grant of an ex parte injunction can be appealed. The defendant can launch a so-called "third-party opposition," which will be decided upon by the President who granted the order. The decision on the third-party opposition can also be appealed.
- Appeal of a decision granting an ex parte injunction cannot be expedited.
- The denial of an ex parte injunction can be appealed.
- Appeal of a decision denying an ex parte injunction cannot be expedited.

IV. Civil Enforcement-- Emergency Measures — B. Interim Inter Partes Injunctions

- Interim inter partes injunctions are available to claimants seeking emergency relief.
Interim injunctions can be obtained in the context of different types of proceedings:— A preliminary injunction can be obtained in separate summary proceedings.— A preliminary injunction can be obtained in proceedings on the merits, prior to the final judgment. This section refers to the interim injunction obtained in summary proceedings. The interim injunction obtained in the context of proceedings on the merits is dealt with in section IV.C.
- In order to apply for an interim inter partes injunction, it is not necessary to institute infringement proceedings at the same time. If no writ of summons on the merits is launched within 20 working days or 31 calendar days (whichever is longest) or within the shorter or longer time limit imposed by the order, however, the interim measures that have been granted in summary proceedings will cease to have their effect (Art. 1369ter of the Judicial Code).
- The types of interim inter partes injunction available include: prohibitory (to prohibit the defendant from performing certain acts); mandatory (to require the defendant to perform certain acts).
- The deadline for seeking an interim inter partes injunction is: There is no statutory deadline for seeking an interim inter partes injunction. However, in order to obtain preliminary measures in the summary proceedings, the claimant must show that the claim is urgent. This implies that the claimant may not dawdle when seeking the interim injunction.
- A delay in applying for an interim inter partes injunction can prevent the applicant from obtaining the desired relief under the following circumstances: A delay in applying for an interim inter partes injunction in the context of summary proceedings may lead the judge to rule that the claim is not urgent (any more). In such circumstances, the request will be dismissed.
- The purpose of an interim inter partes injunction is: to restrain further infringing activities until trial or a further hearing; to prevent the consequences of an infringement or violation; to obtain or preserve evidence; to ensure the effectiveness of the eventual remedy; to prevent irreparable injury.
- The strategic benefits of obtaining an interim inter partes injunction include: putting the defendant at a strategic disadvantage at the beginning of the case; obtaining or preserving evidence; ensuring the availability of the requested remedy; ensuring the availability of compensation for damages; reducing potential damage caused by infringement. Summary proceedings regarding an interim inter partes injunction will not lead to a final judgment finding infringement, or lack thereof. As such, the ex parte proceedings will not put an end to the dispute between the parties. The summary proceedings are used to obtain urgent measures to limit further damages, and are based on a preliminary assessment by the court. However, it is possible for the parties to settle their dispute at the stage of the summary proceedings. Preliminary measures granted in the context of summary proceedings cease to have their effect if no writ of summons on the merits is introduced within 20 working days or 31 calendar days (whichever is longest) after the service of the summary order to the defendant (unless the order provided for another longer or shorter time limit) (Art. 1369ter of the Judicial Code).
- The risks of seeking an interim inter partes injunction (if it is not granted) are: increased costs of the proceedings; early disclosure of plaintiff's case; prejudicial adverse determination (although the Court handling the case on the merits is not bound by decisions in summary proceedings).
- An interim inter partes injunction remains in place: When granting an interim inter

partes injunction, the Judge may determine the terms and conditions of the order, including the scope and the duration. However, if no writ of summons on the merits is introduced within 20 working days or 31 calendar days (whichever is longest) after the service of the summary order to the defendant (unless the order provided for another longer or shorter time limit), the preliminary measures cease to have their effect (Art. 1369ter of the Judicial Code; Art. 50(6) TRIPS Agreement).

- The procedure for applying for an interim inter partes injunction includes the following: motion, with notice to all parties; supporting memorandum/points and authorities of law; supporting affidavits or declarations; supporting documentary evidence; responsive memorandum/points and authorities of law; responsive affidavits or declarations; live presentation of evidence; hearing; order; posting bond, cross-undertaking or other security.
- The amount of the bond or cross-undertaking is determined based on: the potential damage/losses to the defendant caused by an improvidently entered injunction (Article 1369ter §§ 2-3 of the Judicial Code).
- The factors considered in the granting of an interim inter partes injunction are: balance of convenience or hardships; i.e., consideration of the hardship to each side arising from the grant and from the denial of the injunction; likelihood of success on the merits; urgency; timeliness with which plaintiff sought the injunction.
- The following forms of evidence are admissible in support of an interim inter partes injunction application: written witness statements; oral testimony of witnesses (very exceptional); documents; affidavits; samples of infringing product(s).
- If the court later finds that the interim inter partes injunction was granted in error, the applicant may be required to: compensate the defendant for damages suffered from the injunction; forfeit its bond, which is paid to the defendant.
- The cost of obtaining an interim inter partes injunction, including attorney fees and court costs (but excluding the cost of a bond), is approximately: between EUR 8,000 and EUR 14,000, depending on the complexity of the case.
- The costs of an interim inter partes injunction are recoverable as follows: The recovery of attorney fees is organized by law. In particular, fixed recoverable amounts are set, which apply for each instance (first instance and appeal). The Court of Justice of the European Union has scrutinized this fixed amount system and ruled that such a system is in principle allowed, but that the amounts should cover a significant and appropriate part of the reasonable costs incurred by the successful party (judgment of 28 July 2016, C-57/15, United Video Properties). In Belgium, the case law takes the case law of the Court of Justice of the European Union into account, but absent any legislative initiative, it continues to apply the fixed amounts (see, e.g., Antwerp 8 May 2017, IRDI 2017, 16). For non-monetary claims, the average recoverable amount is EUR 1,440. This amount can be reduced to a minimum of EUR 90 or increased to a maximum of EUR 12,000 based on the circumstances of the case, such as the complexity of the case.
- It takes approximately the following length of time to obtain an interim inter partes injunction (counting from the filing of the application to the issuance of the injunction): between 30 and 90 days.
- In an interim inter partes proceeding, a party may request an order to enter the premises of another party to search for property/documents/items that may become evidence (i.e., a “search order” or “search and seizure order”). Although possible, it is rather exceptional for parties to request an inspection in the context of inter partes summary proceedings. As discussed above, there is a specific ex parte search and description possibility, which has the added advantage of a surprise effect (preventing the destruction of evidence). These proceedings will be preferred in practice.

- The following party or parties will be present at the inspection: If an inspection is ordered in the context of summary inter partes proceedings, the President of the Court will be able to decide which parties may be present at the inspection. The President of the Court will appoint an expert, who will in any case be present.
- In an interim inter partes proceeding, a party may request an order to freeze the assets of another party to prevent dissipation of the assets before conclusion of the proceedings (i.e., a “freezing order” or “freezing injunction”). In accordance with Article 584 § 5, 5° of the Judicial Code, it is possible for the President of the Court in summary proceedings to order the seizure of the movable and immovable property of the alleged infringer, including the freezing of his bank accounts and other assets. The following conditions need to be fulfilled:— the trademark must be *prima facie* valid;— the infringement of the trademark cannot be reasonably contested;— the balance of interests justifies the freezing order or freezing injunction;— the infringement must be committed on a commercial scale;— the claimant must demonstrate circumstances likely to jeopardize the compensation of its prejudice. In general, such a seizure will more often be requested in the context of *ex parte* proceedings, in the context of a request for an expert description, combined with effective seizure measures.
- The determination on an application for an interim inter partes injunction cannot be made into a final decision on the merits (i.e., an interim inter partes injunction cannot be made permanent). An interim inter partes injunction granted in summary proceedings does not affect the merits of the case, and does not bind the Judge on the merits (Art. 1039 of the Judicial Code). The parties are, however, free to settle their dispute on the basis of the inter partes injunction.
- The hearing on an interim inter partes injunction cannot be consolidated with the trial or final determination on the proceeding.
- The grant of an interim inter partes injunction can be appealed without waiting for final disposition of the case only under the following circumstances: Immediate appeal is only possible against “final judgments.” Appeal against “intermediate judgments” is only possible, together with the appeal against the later final judgment that follows the intermediate judgment (Art. 1050, § 2 of the Judicial Code). A distinction has to be made on the basis of the proceedings in the context of which the interim measures were ordered. On the one hand, an interim inter partes injunction can be granted in the separate summary proceedings. In that case, the decision regarding the interim injunction is the final decision in the proceedings. Immediate appeal is thus possible. On the other hand, an interim inter partes injunction can be granted as a preliminary measure in the proceedings on the merits. In that case, the decision regarding the interim injunction is an intermediate decision, which can only be appealed together with the final judgment on the merits.
- Further appeal of the grant of an interim inter partes injunction is possible without waiting for final disposition of the case under the following circumstances: Further appeals are possible on points of law only.
- Appeal of a decision granting an interim inter partes injunction cannot be expedited.
- The denial of an interim inter partes injunction can be appealed without waiting for final disposition of the case only under the following circumstances: Immediate appeal is only possible against “final judgments.” Appeal against “intermediate judgments” is only possible, together with the appeal against the later final judgment that follows the intermediate judgment (Art. 1050, § 2 of the Judicial Code). A distinction has to be made on the basis of the proceedings in the context of which the interim measures were ordered. On the one hand, an interim inter partes injunction can be granted in the separate summary proceedings. In that case, the decision

regarding the interim injunction is the final decision in the proceedings. Immediate appeal is thus possible. On the other hand, an interim inter partes injunction can be granted as a preliminary measure in the proceedings on the merits. In that case, the decision regarding the interim injunction is an intermediate decision, which can only be appealed together with the final judgment on the merits.

- Further appeal of the denial of an interim inter partes injunction is always possible without waiting for final disposition of the case. Further appeals are possible on points of law only.
- Appeal of a decision denying an interim inter partes injunction cannot be expedited.

IV. Civil Enforcement-- Emergency Measures — C. Standards for Obtaining Inter Partes and Ex Parte Injunctions

- The standard for obtaining an interim inter partes injunction differs from the standard for obtaining an ex parte injunction as follows: To obtain an interim inter partes injunction, the claimant has to prove that there is urgency. To obtain an interim ex parte injunction, the claimant has to prove that the claim is urgent, as well as an absolute necessity. Regarding the conditions for ex parte search and description, as well as seizure orders, reference is made to section IV.A.

V. Early Resolution of Litigation — A. Interim Applications Available for Ending Proceedings Early

- A party cannot end proceedings prior to trial or final determination by any interim applications (such as summary judgment or determination of preliminary issue by trial or hearing).

V. Early Resolution of Litigation — C. Trial of Preliminary Issue

- Proceedings cannot be expedited through an early trial or hearing on a preliminary issue. Preliminary measures can be ordered in the context of an early trial, but they cannot lead to proceedings being sped up or expedited.

VI. Evidence — A. Evidence

- The following forms of evidence can be relied upon in support of a claim in this jurisdiction's trademark infringement proceedings: documentary evidence (including samples/photos of allegedly infringing items); expert evidence; oral testimony (Witnesses are rarely heard in court. More commonly, written witness statements are submitted to the court as exhibits. The Judicial Code provides the conditions that must be fulfilled for a written witness statement to have probative value (Art. 961/2 of the Judicial Code). The Judge is also free to accept statements that do not comply with Art. 961/2 of the Judicial Code.); survey evidence.
- The following forms of evidence can be relied upon in defense of a claim in this jurisdiction's trademark infringement proceedings: documentary evidence; expert evidence; oral testimony (Witnesses are rarely heard in court. More commonly, written witness statements are submitted to the court as exhibits. The Judicial Code provides the conditions that must be fulfilled for a written witness statement to have probative value (Art. 961/2 of the Judicial Code). The Judge is also free to accept statements that do not comply with Art. 961/2 of the Judicial Code.); survey evidence.
- A claimant must present or give notice of any evidence on which it will rely at a time set by the tribunal.

- A defendant must present or give notice of any evidence on which it will rely at a time set by the tribunal.
- A party to the proceedings may obtain information that is within the possession or control of another party to the proceedings: at the request of the tribunal (The court can order a party to provide evidence within its possession or control by rendering an interim judgment.); at the request of the party (A party can request the other party to provide evidence within its possession or control, by including such a request in its legal submissions, or by explicitly requesting the court to order a preliminary measure. The other party will not be obliged in such case to provide the evidence thus requested, unless the court so ordered.).

VII. Trial/Oral Hearing — A. Trial/Oral Hearing

- Evidence may be presented at the trial or oral hearing in the form of: written witness statement (including, e.g., affidavits, depositions, or statutory declarations); oral testimony of witnesses (rarely); documents; surveys; physical objects; expert testimony.
- It is possible to introduce surveys in evidence for the following issues: secondary meaning/acquired distinctiveness; whether a mark is famous or well known; likelihood of confusion; dilution; genericness; functionality.
- The use of survey evidence is subject to the following requirements: Survey evidence is not subjected to specific requirements under Belgian law. However, the case law of the Court of Justice of the European Union offers some indications regarding the evidential value of consumer surveys. First, the questions asked must be non-leading (General Court of the European Union 13/09/12, T-72/11, Espetec, EU:T:2012:424, § 79). Second, the public sample must be indicative of the entire relevant public and must be selected randomly (General Court of the European Union 29/1/13, T-25/11, Cortadora de cerámica, EU:T:2013:40, § 88; General Court of the European Union 25/09/2014, T-171/12, Peri, §§ 45 to 47). Finally, the survey's evidential value always depends on the method used (General Court of the European Union 12/07/2006, T-277/04, Vitacoat, EU:T:2006:202, § 38-39). In its "SALOSPIR" judgment of October 24, 2018 (case T-261/17), the General Court of the European Union set out the following standards: 1. The survey should be carried out in the objective circumstances in which the marks at issue are present, or may be present, on the market. 2. The persons interviewed should have been shown several images in order to be able to spontaneously associate one of those images with a trademark or an undertaking, instead of being shown one image only. 3. The probative value of the surveys also depends on the way in which the questions were formulated (they may not be suggestive).
- The length of an average trial or final hearing in a civil action for trademark infringement is: 60 to 180 minutes, depending on the complexity of the case and on possible counterclaims.
- The nature of the proceedings is: inquisitorial, i.e., the decision maker controls the proceedings and the parties and their representatives have limited power.
- A trial or final hearing includes the following: discussion of factual issues and/or evidence; discussion of legal issues; questions to parties; statements of parties.

The claimant and the defendant have prior allocated time slots. Usually, the claimant firstly sets out the facts and his legal arguments. Then the defendant presents his interpretation of the facts, and his legal defenses (as well as possible counterclaims). Afterwards, they both have a brief moment to reply. The defendant has the last word. The judge leads the trial, and can ask questions. Some judges take a more active role than others.

- Witnesses are examined by: the judge (Witnesses are rarely heard in court. More commonly, written witness statements are submitted to the court as exhibits. The Judicial Code indicated which conditions must be fulfilled for a written witness statement to have probative value (Art. 961/2 of the Judicial Code). The Judge is also free to accept statements that do not comply with Art. 961/2 of the Judicial Code.).
- As part of trial preparation, the parties do the following: provide draft findings and conclusions if the proceeding is to be decided by a judge; submit marked exhibits.

VIII. Judgment/Final Orders — A. Judgment/Final Orders

- It takes approximately the following amount of time for a decision to be handed down after trial or final hearing: Article 770 of the Judicial Code provides that, in general, the judgment must be pronounced within one month after the conclusion of the debates. Judges have some flexibility, and can take up to three months; however, if the three-month delay is exceeded, a report will be made to the head of the judges and the first president of the Court of Appeal. If no judgment has been rendered within six months, the parties can request that the case be referred to another judge, who will have to render a judgement within a brief term (Art. 652 and following of the Judicial Code).
- The decision may be appealed within the following time frame: generally, one month as from the service of the judgment to the counterparty (Art. 1051 of the Judicial Code).
- Appealing a decision is of right; no permission is needed.
- There is only one court to which an initial appeal can be made, which is: the Court of Appeal. The Court of Appeal may only hear appeals against decisions of courts within its jurisdiction.
- The appeal court reviews: both the facts of the case and legal issues.
- Further appeal is possible to the following court: the Belgian Supreme Court (Cour de Cassation), on points of law only.
- Further appeal is not granted as a matter of right; permission is required. Only 20 attorneys are entitled to plead before the Belgian Supreme Court. Parties wishing to appeal a case to the Supreme Court, will present their case to a Supreme Court attorney, who will provide preliminary advice. If he or she deems the chances of success too slim, he or she might refuse to bring the appeal. In that case, another Supreme Court attorney may however bring the appeal nonetheless, if he or she considers there to be some chance of success.

IX. Post-Judgment Matters — A. Post-Judgment Matters

- A defendant has the following length of time to comply with an order issued in a judgment: No statutory time slot is provided to that effect. However, the judge can impose deadlines that have to be respected (e.g., to cease infringement), and can order penalty payments if they are not. Final judgments are, in principle, enforceable immediately after service of the judgment to the opposing party, even if the judgment is appealed (Art. 1397 of the Judicial Code). The judge who has rendered the judgment can, however, exclude this possibility (which rarely happens). In any case, the provisional enforcement of the judgment is at the party's own risk (Art. 1398 of the Judicial Code).
- A judgment may be enforced by way of the following proceeding(s): First of all, the judgment will be served on the opposing party by a bailiff, at the request of the executing party. The bailiff can order the execution of the judgment (e.g., to cease

infringement, as ordered by the Court). The service of the judgment will also form the starting point for any penalty payments becoming due, if such penalty payments were ordered by the judge in the judgment. It is also possible for the bailiff to serve a payment order, e.g., regarding the payment of damages. If the served party refuses payment, a seizure can be executed by the bailiff.

X. Costs of Litigation — A. General

- The types of costs that may be recovered by the prevailing party during/after legal proceedings include: attorney fees; court fees; expert fees; bond or security for costs; bailiff fees.
- A range for the all-inclusive cost of a typical action for trademark infringement from filing of the claim through trial is as follows: between EUR 15,000 and 30,000 for infringement proceedings in the first instance, depending on the complexity of the case.
- The successful party in a trademark infringement claim can expect to recover a portion of the attorney fees incurred (as distinguished from damages awarded). See below.
- The average percentage of attorney fees incurred in a trademark infringement claim that a successful party can expect to recover is: The recovery of attorney fees is organized by law. In particular, fixed recoverable amounts are set, which apply for each instance (first instance and appeal). The Court of Justice of the European Union has scrutinized this fixed amount system and ruled that such a system is in principle allowed, but that the amounts should cover a significant and appropriate part of the reasonable costs incurred by the successful party (judgment of 28 July 2016, C-57/15, United Video Properties). In Belgium, the case law takes the case law of the Court of Justice of the European Union into account, but absent any legislative initiative, it continues to apply the fixed amounts (see, e.g., Antwerp 8 May 2017, IRDI 2017, 16). For non-monetary claims, the average recoverable amount is EUR 1,440. This amount can be reduced to a minimum of EUR 90 or increased to a maximum of EUR 12,000 based on the circumstances of the case, such as the complexity of the case, the financial strength of the losing party, contractually determined compensations for the winning party, and the manifestly unreasonable nature of the situation. For monetary claims, the recoverable amount depends on the amount of the damages claimed and eventually awarded in the proceedings.
- Attorney fees are assessed using the following method(s): a fixed fee schedule.

X. Costs of Litigation — B. Security for Costs

- When initiating proceedings, a plaintiff may be required to provide security for any costs that may eventually be awarded against it. It is possible for the judge to order the claimant requesting an ex parte injunction to provide securities (regarding ex parte injunctions, see in more detail point IV.A.). When the claimant requests an ex parte search and seizure order or ex parte urgent preliminary measures in summary proceedings, the President of the Court may impose the obligation on the claimant to provide securities to guarantee the possible compensation of the defendant's damages. In case of a search and seizure order, this security will have to be presented before the claimant can receive the executable order. The reason for the security is that when the search or seizure order or preliminary measures that have been granted in the framework of ex parte proceedings are revoked or lapse by reason of any act or omission on the part of the claimant, or where it is later found that there was no infringement or threat of infringement of an intellectual property

right, the Court may, at the request the defendant, order the applicant to compensate its damages (Article 1369bis/3 and Article 1369ter of the Judicial Code). Apart from these two possible specific securities for ex parte proceedings, no security has to be provided when initiating proceedings. However, a foreign claimant that initiates proceedings against a Belgian defendant may be required to provide a security, unless this is excluded on the basis of interstate agreements (Art. 851-852 of the Judicial Code). European claimants are so exempted. The security is intended to cover the payment of the costs and damages that the claimant might be ordered to pay to the defendant if he or she loses the case. The Constitutional Court (judgment 11 October 2018, case n° 135/2018) deemed the system to be unfair and unconstitutional in certain circumstances. However, absent abolishment of the system by the legislator, case law continues to apply this exception (Enterprise Court Antwerp 12 November 2019, RW 2019-20, 1184; Court of Appeal Brussels 17 June 2019, case n° 2019/AR/81). Hereinafter, the security of Art. 851-852 of the Judicial Code will be discussed further.

- A defendant is not required to provide security for costs after proceedings are initiated.
- Application for security for costs is made via the following procedure: as a defense (an exception) invoked before any other argument by the Belgian defendant.
- For the court to grant security for costs, the following conditions must be met: the claimant is resident outside the jurisdiction (the claimant is resident outside the European Union and no bilateral agreement is in place between Belgium and the third country concerned that exempts the nationals of this country from such securities).
- An application for security for costs can be made at the following stage of the proceedings: before any other argument is raised.
- In granting security for costs, the court may make the following orders: the amount of the security; the manner in which the security must be given; the time frame in which the security must be given.
- An order for security for costs may be appealed under the following circumstances: A decision on the security is regarded to be a final decision, which can be appealed immediately (Court of Appeal Brussels 17 June 2019, case n° 2019/AR/81).
- If security is ordered, it is customarily provided in the form of: payment to the deposit and consignment office, where the amount will be frozen until a judgment orders the release.

XI. Remedies — A. Remedies

- The following monetary remedies are available for trademark infringement: actual damages (but not an accounting of defendant's profits) (The defendant's unfair profits can be taken into account by the judge as a parameter when setting the damages (Art. 2.21.2 a) of the Benelux Convention on Intellectual Property and Art. 13 of the Enforcement Directive 2004/48).); Belgian law discerns between two types of damage to allow for complete compensation of the right holder: *lucrum cessans* (lost profits) and *damnum emergens* (actual loss). *Lucrum cessans* is calculated by multiplying the amount of infringing products by the net margin of the right holder per original product. This allows for the calculation of the net amount of lost profits for the right holder. *Damnum emergens* contains damages that are typically hard to calculate, such as reputational damage, loss of exclusivity, moral damage, etc. Additionally, it is possible for the judge to order the defendant to transfer his profits stemming from the infringement to the right holder, if the infringement was committed in bad faith. The judge can also order the forfeiture of the infringing goods and the materials and tools used in the production of those goods for the benefit of the right holder. This forfeiture

replaces the monetary damages for the value of the forfeited goods.

- Actual damages are assessed using the following methods: lost profits of plaintiff; damages to plaintiff. Oftentimes, the judge will set the damages as a reasonable and fair lump sum ("ex aequo et bono"), on the basis of objective elements of the case.
- Determination of the type and amount of remedy is part of the trial on liability.
- The following non-monetary remedies are available for trademark infringement: injunctions; delivery up of infringing labels, packaging or products; destruction; disposal; removal or obliteration; public dissemination of judgment; recall of infringing products; identification of supplier (The judge can order the infringer to communicate all he knows concerning the origin and distribution channels of the infringing goods or services.).

PERMISSIONS STATEMENT

Users are permitted to provide copies of individual jurisdiction profiles or other searches to clients in response to their queries for such information. A copyright notice will automatically print at the end of each search when you use your browser's print function. Please note that this permission applies only to duplication or transmission of portions of the content of this Practice Guide and does not extend to duplication or transmission of the entire content by any means.

DISCLAIMER

All information provided by the International Trademark Association in this Practice Guide is provided as a source of general information on trademark and other intellectual property issues. In legal matters, no publication whether in written or electronic form can take the place of professional advice given with full knowledge of the specific circumstances of each case and proficiency in the laws of the relevant jurisdiction. While efforts have been made to ensure the accuracy of the information in this Practice Guide, it should not be treated as the basis for formulating business decisions without professional advice.

Copyright © 2016 – 2026 International Trademark Association